

Bill No. 1 of 1980

**THE CONSTITUTION (FORTY-FIFTH AMENDMENT)
BILL, 1980**

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BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Thirtieth Year of the Republic of India as follows:—

1. (1) This Act may be called the Constitution (Forty-fifth Amendment) Act, 1980.

Short
title, and
commen-
cement.

5 (2) It shall be deemed to have come into force on the 25th day of January, 1980.

2. In article 334 of the Constitution, for the words “thirty years”, the words “forty years” shall be substituted.

Amend-
ment of
article
334.

STATEMENT OF OBJECTS AND REASONS

Article 334 of the Constitution lays down that the provisions of the Constitution relating to the reservation of seats for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indian community by nomination in the Lok Sabha and in the Legislative Assemblies of the States shall cease to have effect on the expiration of a period of thirty years from the commencement of the Constitution. Although the Scheduled Castes and the Scheduled Tribes have made considerable progress in the last thirty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of members, have not ceased to exist. It is, therefore, proposed to continue the reservation for the Scheduled Castes and the Scheduled Tribes and the representation of Anglo-Indians by nomination for a further period of ten years.

2. The Bill seeks to achieve the above object.

NEW DELHI;

ZAIL SINGH

The 16th January, 1980.

FINANCIAL MEMORANDUM

Clause 2 of the Bill seeks to amend article 334 of the Constitution to provide for the continuance of the representation of the Anglo-Indian community in the Lok Sabha and in the Legislative Assemblies of the States by nomination for a further period of ten years. It is estimated that the recurring expenditure on the salaries and allowances and other concessions, of the two representatives of the Anglo-Indian community in the Lok Sabha under article 331, will be of the order of Rs. one lakh per annum.

2. There will be no non-recurring expenditure.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

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PART XVI

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

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Reserva-
tion of
seats and
special
represen-
tation to
cease
after
thirty
years.

334. Notwithstanding anything in the foregoing provisions of this Part, the provisions of this Constitution relating to—

(a) the reservation of seats for the Scheduled Castes and the Scheduled Tribes in the House of the People and in the Legislative Assemblies of the States; and

(b) the representation of the Anglo-Indian community in the House of the People and in the Legislative Assemblies of the States by nomination,

shall cease to have effect on the expiration of a period of thirty years from the commencement of this Constitution:

Provided that nothing in this article shall affect any representation in the House of the People or in the Legislative Assembly of a State until the dissolution of the then existing House or Assembly, as the case may be.

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LOK SABHA

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further to amend the Constitution of India.

(Giani Zail Singh,
Minister of Home Affairs)